Brokerage Determination

July 1, 2026

After reviewing the complaint and the supporting documentation, the brokerage determines that corrective action is warranted.

The investigation determined that:

- The transaction was conducted under a designated agency relationship.
- An affiliated licensee who was not the buyer's designated agent accessed the buyer's confidential transaction information.
- Jane Clark permitted another affiliated licensee to negotiate on behalf of the buyer while she was unavailable.
- Mark Wilson negotiated on behalf of the buyer despite not being the buyer's designated agent.
- The Managing Broker failed to adequately supervise affiliated licensees and safeguard confidential client information.

The brokerage further determines that the buyer's request for reimbursement of the additional $1,000 septic expense is not supported by the investigation's findings, as the evidence does not establish that the brokerage guaranteed the septic repair estimate or assumed responsibility for costs exceeding the $500 seller contribution.

Corrective action is warranted for Jane Clark for permitting another affiliated licensee to negotiate on behalf of her client while she was unavailable without obtaining authorization from the Managing Broker.

Corrective action is warranted for Mark Wilson for accessing confidential client information and negotiating on behalf of the buyer despite not being the buyer's designated agent.

Corrective action is warranted for the Managing Broker for failing to adequately supervise affiliated licensees and safeguard confidential client information.